



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

July 21, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 20566
(SECOND REVISION)

EXPIRATION DATE: 2027-06-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: University of Louisiana at Lafayette
New Iberia, LA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time, one-way transportation in commerce of non-human primates (NHPs) infected with Division 6.2, Category B infectious substances. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.199(a) and (c) in that alternative packaging is authorized.
5. BASIS: This special permit is based on the application of University of Louisiana at Lafayette dated June 13, 2023, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Biological substance, Category B	6.2	UN3373	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The primary enclosure is a United States Department of Agriculture (USDA) transport crate (enclosure) which meets the requirements as defined in the Animal Welfare Act for transporting animals with unknown health statuses into the U.S. from international locations.

- (1) Each enclosure shall be large enough to contain the animal and will not allow the animal to put any part of its body outside the enclosure. Except for a mother and nursing infant, an established male-female pair or family group, or a compatible juvenile pair, only one animal may be transported in an enclosure.
- (2) The openings must be secured with animal-proof devices to prevent accidental opening.
- (3) The bottom of each enclosure must be either a solid, spill-proof bottom or a removable, spill-proof tray under a slatted or mesh floor. Each style of floor must prevent seepage of waste products outside of the enclosure. The slatted or mesh floor must be constructed so that the animal cannot put any part of its body through the raised floor.
- (4) Each enclosure must be free of sharp joints, edges, or protrusions that could injure the animal within, exposing blood.
- (5) Unless the enclosure is permanently affixed to the transport vehicle, the enclosure must have adequate handles or handholds so it can be lifted without tilting and to ensure anyone handling it will not come into physical contact with the NHP inside.
- (6) The primary enclosure must be destroyed after the shipment is completed.

b. OPERATIONAL CONTROLS:

- (1) The carrier must be registered with the USDA as a Class T carrier as well as registered with the USDOT.
- (2) A minimum of two employees must be involved in conducting this shipment.
- (3) Entrance into the transport vehicle's cargo bay will occur through an anteroom door to ensure no animals have escaped their enclosures during transportation prior to opening the rear trailer doors.
- (4) Upon departure from the shipping facility with animals on board, the receiving facility will be notified by phone or email that the shipment is under way as well as an approximate arrival time at the facility.
- (5) In case of an emergency, the transportation staff will contact both the shipping and receiving facilities by phone, as well gather instructions from the responsible person for the shipment.
- (6) The shipping vehicle must be thoroughly disinfected using a quaternary ammonia solution at the receiving facility after the enclosures are removed from the trailer and while the trailer is still within the receiving building.
- (7) The transporter shall have detailed emergency response procedures in place for handling any contingencies that may arise during transportation.
- (8) Enclosures must be marked with UN3373 labels, orientation labels, name of responsible person, and USDA certifications for shipping the NHPs. The bill of lading shall include documentation identifying potential biohazards and the 24-hour contact information for a responsible person.
- (9) The responsible person must be knowledgeable about the contents in the shipment and the potential hazards that it may pose and monitor the shipment in transit until receipt and confirmation by the consignee. The responsible person shall assist in the coordination of responses of emergency officials or transportation-safety officers in the case of accident or theft.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read 'William Schoonover', is written over a faint, larger signature.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Casey Chambers